

UNITED STATES DEPARTMENT OF AGRICULTURE
BEFORE THE SECRETARY OF AGRICULTURE

In re:

Victoria Ricker, an individual,

Respondent.

HPA Docket No. 25-J-0011

REC'D - USDA/OALJ/HCO
2025 AUGUST 20 12:38 PM

**DECISION AND ORDER GRANTING IN PART AND
DENYING IN PART COMPLAINANT'S MOTION FOR DEFAULT**

Appearance:

Olivia DePasquale, Esq., Office of the General Counsel, United States Department of Agriculture, Washington, DC, for the Complainant, Administrator, Animal and Plant Health Inspection Service ("APHIS"), United States Department of Agriculture

This is a proceeding under the Horse Protection Act, as amended (15 U.S.C. §§ 1821 *et seq.*) ("HPA" or "Act"); the regulations promulgated thereunder (9 C.F.R. §§ 11.1 *et seq.*); and the Rules of Practice Governing Formal Adjudicatory Proceedings Instituted by the Secretary Under Various Statutes (7 C.F.R. §§ 1.130 through 1.151) ("Rules of Practice").

The Administrator of the Animal and Plant Health Inspection Service, United States Department of Agriculture ("Complainant"), initiated this proceeding by filing a complaint against Victoria Ricker, an individual ("Respondent"), on October 10, 2024. The Complaint alleges that on or about October 20, 2023, Respondent allowed the entry of a horse she owned, known as "The Great I Am," for the purpose of showing the horse in the East Tennessee Walking Horse Association Fall Classic Horse Show while the horse was sore in violation of 15 U.S.C. § 1824(2)(D) and 9 C.F.R. § 11.3.¹ The Complaint requests "that such order or orders be issued, as are authorized by the Act (15 U.S.C. § 1825) and warranted under the circumstances."²

¹ Complaint at 1.

² *Id.* at 2.

Respondent was duly served with a copy of the Complaint and did not file an answer within the twenty-day period prescribed by section 1.136 of the Rules of Practice (7 C.F.R. § 1.136), nor has Respondent filed such an answer since that deadline.³

On February 20, 2025, I issued an order (“Show Cause Order”) directing the parties to show cause why default should not be entered against Respondent.⁴

On June 2, 2025, Complainant filed a proposed decision and order by reason of default (“Proposed Decision”) and motion for adoption thereof (“Motion for Default”) pursuant to section 1.139 of the Rules of Practice (7 C.F.R. § 1.139).⁵ Complainant now requests an order finding that Respondent violated the HPA and Regulations, assessing Respondent ten dollars in civil penalties, and disqualifying Respondent “for one year from showing, exhibiting, or entering

³ United States Postal Service records reflect that the Complaint was sent to Respondent via certified mail and returned to the Hearing Clerk’s Office as “unclaimed.” In accordance with the Rules of Practice, the Hearing Clerk re-mailed (*see* 7 C.F.R. § 1.132) the Complaint to the same address by ordinary mail on January 14, 2025. 7 C.F.R. § 1.147(c)(1). Respondent had twenty days from the date of service to file a response. 7 C.F.R. § 1.136(a). Weekends and federal holidays shall be included in the count; however, if the due date falls on a Saturday, Sunday, or federal holiday, the last day for timely filing shall be the following workday. 7 C.F.R. § 1.147(h). In this case, Respondent’s answer was due on or before February 3, 2025. Respondent has not filed an answer.

⁴ The Show Cause Order also directed: “Unless the parties have agreed to a consent decision, Complainant’s response shall be accompanied by: (1) a proposed decision and order and (2) a motion for adoption of that proposed decision and order in accordance with the provisions of 7 C.F.R. § 1.139.” Show Cause Order at 2.

⁵ The Motion included five exhibits: “Exhibit A” (October 24, 2024 Hearing Clerk’s letter to Respondent); “Exhibit B” (tracking information for USPS tracking number 70182290000086068850); “Exhibit C” (January 2025 email chain between Olivia DePasquale, Esq., and Complainant’s counsel and Caroline Hill, Hearing Clerk); “Exhibit D” (“Declaration of Marco Flores” regarding residential address search for Respondent); “Exhibit E” (tracking information for USPS tracking number 70223300000041702482).

any horse . . . and from judging, managing or otherwise participating in any horse show, horse exhibition, or horse sale or auction.”⁶

Respondent did not respond to the Show Cause Order and has not filed any objections to Complainant’s Motion for Default or Proposed Decision.⁷

Failure to file a timely answer or failure to deny or otherwise respond to allegations in the Complaint shall be deemed, for purposes of this proceeding, an admission of the allegations in the Complaint, unless the parties have agreed to a consent decision.⁸ Other than a consent decision, the Rules of Practice do not provide for exceptions to the regulatory consequences of an unfiled answer where, as in the present case, no meritorious objections have been filed.⁹ Accordingly, Respondent here has admitted the material allegations of fact contained in the Complaint and waived the opportunity for hearing.¹⁰

Sanctions

As previously stated, Complainant asks that Respondent be assessed ten dollars in civil penalties and disqualified for one year from showing, exhibiting, or entering any horse and from

⁶ Motion for Default at 3-4.

⁷ United States Postal Service records reflect that Complainant’s Motion for Default and Proposed Decision were sent to Respondent via certified mail and delivered on July 7, 2025. Respondent had twenty days from the date of service to file objections thereto. 7 C.F.R. § 1.139. Weekends and federal holidays shall be included in the count; however, if the due date falls on a Saturday, Sunday, or federal holiday, the last day for timely filing shall be the following workday. 7 C.F.R. § 1.147(h). In this case, Respondent’s objections were due on or before July 29, 2025. Respondent has not filed any objections.

⁸ 7 C.F.R. § 1.136(c).

⁹ See *supra* note 7 and accompanying text.

¹⁰ See 7 C.F.R. § 1.139.

judging, managing, or otherwise participating in any horse show, exhibition, sale, or auction.¹¹

Although the Complaint allegations are deemed admitted, I cannot axiomatically adopt Complainant's recommended sanctions. Complainant failed to set forth any evidence or explanation to support its recommendation. It is well established that "sanction[s] by an administrative agency must be warranted in law *and justified in fact*."¹² And the Department's sanction policy is as follows:

The sanction in each case will be determined by examining the nature of the violations in relation to the remedial purposes of the regulatory statute involved, along with all relevant circumstances, always giving appropriate weight to the recommendations of the administrative officials charged with the responsibility for achieving the congressional purpose.¹³

Nevertheless, an administrative official's recommendation "is not controlling, and in appropriate circumstances, the sanction imposed maybe considerably less, or different, than that recommended" by the official.¹⁴

Complainant initially requested "that such order or orders be issued[] as are authorized by the Act (15 U.S.C. § 1825) and warranted under the circumstances" of this case, but

¹¹ See Motion for Default at 3-4.

¹² *Drogosch*, 63 Agric. Dec. 623, 644 (U.S.D.A. Jud. Officer 2004) (emphasis added); see, e.g., *Butz v. Glover Livestock Comm'n Co.*, 411 U.S. 182, 186 (1973); *Knapp v. U.S. Dep't of Agric.*, 796 F.3d 445, 455 (5th Cir. 2015); *Horton v. U.S. Dep't of Agric.*, 559 F. App'x 527, 533 (6th Cir. 2014). See also *Syverson v. U.S. Dep't of Agric.*, 601 F.3d 793, 804 (8th Cir. 2010) ("A sanction may be without factual justification where the [Administrative Law Judge] fails to consider relevant facts, including, but not limited to, whether the conduct at issue undermined the governing statute [and] the entire context of the violation[.]").

¹³ *S.S. Farms Linn Cnty., Inc.*, 50 Agric. Dec. 476, 497 (U.S.D.A. Jud. Officer 1991).

¹⁴ *Shepherd*, 57 Agric. Dec. 242, 1998 WL 385884, at *29 (U.S.D.A. Jud. Officer 1998).

Complainant never described those circumstances.¹⁵ Moreover, neither the Motion for Default nor the Proposed Decision explains why Complainant seeks a ten-dollar civil penalty or recommends Respondent be disqualified for a year.

When determining civil penalties under the HPA, the Secretary is required to consider “all factors relevant to such determination, including the nature, circumstances, extent, and gravity of the prohibited conduct,” as well as the violator’s “degree of culpability, any history of prior offenses, ability to pay, effect on ability to continue to do business, and such other matters as justice may require.”¹⁶ Neither the Complaint nor the Motion for Default addresses these factors. The Judicial Officer has ruled that the Judge must “duly consider all of the statutory factors in determining the appropriate civil penalty amount to impose” and “[c]onsideration of the statutory factors must be *based on evidence*.”¹⁷ This is true even in cases, such as this, where a respondent is deemed to have admitted the violations for which penalties are sought.¹⁸

Unlike with civil penalties, the Secretary is not required to consider specific statutory factors when imposing disqualification.¹⁹ However, disqualification is only available in cases where a person has been convicted of a “criminal act” under 15 U.S.C. § 1825(a), has “paid a civil penalty assessed under” 15 U.S.C. § 1825(b), or “is subject to a final order . . . assessing a

¹⁵ Complaint at 2.

¹⁶ 15 U.S.C. § 1825(b)(1).

¹⁷ *Nat’l Bridge Stockyard, Inc.*, P&S Docket Nos. 22-J-0004 and 22-J-0005, 2023 WL 5674691, at *8 (U.S.D.A. Jud. Officer Aug. 16, 2023) (emphasis added).

¹⁸ *See id.*

¹⁹ *See* 15 U.S.C. § 1825(c).

civil penalty for any violation” of the HPA or Regulations.²⁰ Because there is no allegation of a criminal conviction and Complainant has not established that civil penalties are warranted in this case, I cannot order disqualification at this time. However, even if I were authorized to impose disqualification, I would decline to do so at this point as Complainant has not shown that disqualification is “warranted under the circumstances”²¹ and necessary to accomplish the remedial purposes of the HPA.²²

As Complainant has not addressed the required statutory factors and has not provided evidence or an explanation supporting its recommendation, I cannot impose the sanctions recommended in Complainant’s Motion. Complainant must come forward with evidence and/or an explanation to support its request.

Findings of Fact

1. Respondent Victoria Ricker is an individual whose mailing address is in the State of Tennessee. Respondent’s personal address was not provided in the Complaint to protect her personal privacy but was provided to the Hearing Clerk, United States Department of Agriculture, for service purposes.
2. At all times mentioned herein, Respondent was a “person” and an “exhibitor,” as those terms are defined in Regulations promulgated under the AWA (9 C.F.R. Parts 11 and 12).
3. On or about October 20, 2023, Respondent allowed the entry of a horse she owned, known as

²⁰ *Id.*

²¹ Complaint at 2.

²² See *S.S. Farms Linn Cnty., Inc.*, 50 Agric. Dec. at 497.

“The Great I Am,” for the purpose of showing the horse in the East Tennessee Walking Horse Association Fall Classic Horse Show, a horse show in White Pine, Tennessee, while the horse was sore, in violation of 15 U.S.C. § 1824(2)(D) and 9 C.F.R. § 11.3.

Conclusions

1. The Secretary of Agriculture has jurisdiction in this matter.
2. By reason of the Findings of Fact set forth above, Respondent Victoria Ricker violated section 1824(2)(D) of the Horse Protection Act, as amended (15 U.S.C. § 1824(2)(D)), and section 11.3 of the Regulations (9 C.F.R. § 11.3).

ORDER

1. Complainant’s Motion for Default is GRANTED in part and DENIED in part, as follows:
 - a. All allegations in the Complaint are proven. Default judgment shall enter in favor of Complainant against Respondent Victoria Ricker, an individual.
 - b. With respect to the assessment of civil penalties, Complainant’s Motion for Default is denied.
2. **By not later than 4:30 p.m. Eastern on September 19, 2025**, Complainant shall file with the Hearing Clerk a written brief in support of Complainant’s proposed sanctions.
3. **By not later than 4:30 p.m. Eastern on October 9, 2025**, Respondent shall file with the Hearing Clerk a response to Complainant’s brief. The response must provide support for Respondent’s position regarding whether the proposed sanctions are warranted.

This Decision and Order shall be final and effective without further proceedings thirty-five (35) days after service, unless an appeal to the Judicial Officer is filed with the Hearing

Clerk within thirty (30) days after service as provided in sections 1.139 and 1.145 of the Rules of Practice (7 C.F.R. §§ 1.139 and 1.145).

Copies of this Decision and Order shall be served upon the parties and counsel by the Hearing Clerk.

Done at Washington, D.C.,
this 20th day of August 2025,

**CHANNING
STROTHER** Digitally signed by
CHANNING STROTHER
Date: 2025.08.20
12:24:49 -04'00'

Channing D. Strother
Chief Administrative Law Judge

Hearing Clerk's Office
United States Department of Agriculture
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CERTIFICATE OF SERVICE

Victoria Ricker, Respondent
Docket No.: 25-J-0011

I HEREBY CERTIFY that a true and correct copy of the ~~DECISION~~ **DECISION AND ORDER GRANTING IN PART AND DENYING IN PART COMPLAINANT'S MOTION FOR DEFAULT** has been furnished and was served upon the following parties on *August 20, 2025*, by the following.

USDA (OGC) – Electronic Mail
Olivia DePasquale, OGC
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Respondent – Certified/Regular Mail
Victoria Ricker
(Due to Personally Identifiable Information,
the Respondent's Address has been Omitted)

Respectfully Submitted,

Marilyn T. Kennedy

Marilyn Kennedy, Acting Hearing Clerk
USDA/Office of Administrative Law Judges
Hearing Clerk's Office, Rm. 1031-S
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